

1 ENGROSSED SENATE
2 BILL NO. 1224

By: Jech of the Senate

3 and

4 Duel of the House

5
6 An Act relating to pardons and paroles; amending 57
7 O.S. 2021, Section 332.2, as amended by Section 1,
8 Chapter 198, O.S.L. 2022 (57 O.S. Supp. 2025, Section
9 332.2), which relates to pardon and parole
procedures; authorizing electronic notification to
victims and victim representatives; updating
statutory language; and providing an effective date.

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11 BE IT ENACTED BY THE PEOPLE OF THE STATE OF OKLAHOMA:

12 SECTION 1. AMENDATORY 57 O.S. 2021, Section 332.2, as
13 amended by Section 1, Chapter 198, O.S.L. 2022 (57 O.S. Supp. 2025,
14 Section 332.2), is amended to read as follows:

15 Section 332.2. A. The Pardon and Parole Board, which shall
16 meet only on the call of the ~~Chair~~ chair, is authorized, if and when
17 an application made to the Governor for a reprieve, commutation,
18 parole, pardon, or other act of clemency is certified thereto by the
19 Governor, to examine into the merits of ~~said~~ the application and
20 make recommendations to the Governor in relation thereto, ~~said~~ such
21 recommendation being advisory to the Governor and not binding
22 thereon.

23 B. Any consideration for commutation shall be made only after
24 application is made to the Pardon and Parole Board pursuant to the

1 procedures set forth in this section. The Pardon and Parole Board
2 shall provide a copy of the application to the district attorney,
3 the victim or representative of the victim, and the Office of the
4 Attorney General within ten (10) business days of receipt of such
5 application.

6 C. An application for commutation, other than those provided
7 for in subsection F of this section, must be sent to the trial
8 officials, who shall have twenty (20) business days to provide a
9 written recommendation or protest prior to consideration of the
10 application. Trial officials shall include:

11 1. The current elected judge of the court where the conviction
12 was had;

13 2. The current elected district attorney of the jurisdiction
14 where the conviction was had; or

15 3. The chief or head administrative officer of the arresting
16 law enforcement agency.

17 D. In cases resolved prior to the tenure of the present
18 officeholders, the recommendation or protest of persons holding such
19 offices at the time of conviction may also be considered by the
20 Board.

21 E. The recommendation for commutation of a sentence by a trial
22 official may include the following:

23 1. A statement that the penalty now appears to be excessive;
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1 2. A recommendation of a definite term now considered by the
2 official as just and proper; and

3 3. A statement of the reasons for the recommendation based upon
4 facts directly related to the case which were not available to the
5 court or jury at the time of the trial or based upon there having
6 been a statutory change in penalty for the crime which makes the
7 original penalty appear excessive.

8 F. The Pardon and Parole Board shall establish an accelerated,
9 single-stage commutation docket for any applicant who has been
10 convicted of a crime that has been reclassified from a felony to a
11 misdemeanor under Oklahoma law. The Pardon and Parole Board shall
12 be empowered to recommend to the Governor for commutation, by
13 majority vote, any commutation application placed on the
14 accelerated, single-stage commutation docket that meets the
15 eligibility criteria provided above. The Department of Corrections
16 shall certify a list of potentially eligible inmates to the Pardon
17 and Parole Board ~~within thirty (30) days of the effective date of~~
18 ~~this act~~ no later than December 1, 2019.

19 G. The Pardon and Parole Board shall schedule the application
20 on a commutation docket in compliance with the notice requirements
21 set forth herein. The Board shall provide the victim or
22 representative of the victim at least twenty (20) days to offer
23 recommendations or protests before consideration of the application.
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1 H. Applications for commutation shall be given impartial review
2 as required in Section 10 of Article VI of the Oklahoma
3 Constitution.

4 I. Any consideration for pardon shall be made only after
5 application is made to the Pardon and Parole Board. Upon receipt of
6 an application for pardon, the Board shall provide a copy of the
7 application to the district attorney, the victim or representative
8 of the victim, and the Office of the Attorney General within twenty
9 (20) business days of receipt of such application. The district
10 attorney and the victim or representative of the victim shall have
11 twenty (20) business days to provide written recommendation or
12 protest prior to the consideration of the application. The Board
13 shall schedule the application on a pardon docket in compliance with
14 the notice requirements set forth herein.

15 J. In accordance with Section 10 of Article VI of the Oklahoma
16 Constitution, the Board shall communicate to the Legislature, at
17 each regular session, by providing a summary of the activities of
18 the Board. This summary shall include, but not be limited to, the
19 following Board activity:

20 1. The approval or recommendation rates of the Board for both
21 violent and nonviolent offenses;

22 2. The parole approval rates for each individual Board member
23 for both violent and nonviolent offenses; and
24

1 3. The percentage of public comments to and personal
2 appearances before the Board including victim protests and personal
3 appearances, district attorney protests and personal appearances,
4 and delegate recommendations and personal appearances on behalf of
5 the offender.

6 This summary shall be made available to the public through
7 publication on the website of the Pardon and Parole Board.

8 K. The Pardon and Parole Board shall provide a copy of their
9 regular docket and administrative parole docket to each district
10 attorney in this state at least twenty (20) days before such docket
11 is considered by the Board, or in the case of a supplemental,
12 addendum, or special docket, at least ten (10) days before such
13 docket is considered by the Board, and shall notify the district
14 attorney of any recommendations for commutations or paroles no later
15 than twenty (20) days after the docket is considered by the Board.

16 L. The Pardon and Parole Board shall notify ~~all victims~~ any
17 victim or representatives of the victim in writing at least twenty
18 (20) days before an inmate is considered by the Board provided the
19 Board has received a request from the victim or representatives of
20 the victim for notice. The Board shall provide ~~all victims~~ any
21 victim or representatives of the victim with the date, time, and
22 place of the scheduled meeting and rules for attendance and
23 providing information or input to the Board regarding the inmate or
24 the crime. If requested by the victim or representatives of the

1 victim, the Board shall allow the victim or representatives of the
2 victim to testify at the parole hearing of the inmate for at least
3 five (5) minutes.

4 M. The Pardon and Parole Board shall notify all victims or
5 representatives of the victim in writing of the decision of the
6 Board no later than twenty (20) days after the inmate is considered
7 by the Board.

8 N. Any notice required to be provided to the victims or the
9 representatives of the victim shall be mailed by first-class mail to
10 the last-known address of the victim or representatives of the
11 victim and shall be sent by email to the last-known email address of
12 the victim or representatives of the victim. It is the
13 responsibility of the victims or representatives of the victim to
14 provide the Pardon and Parole Board a current mailing address or
15 email address. The victim-witness coordinator of the district
16 attorney shall assist the victims or representatives of the victim
17 with supplying their address or email address to the Board if they
18 wish to be notified. Upon failure of the Pardon and Parole Board to
19 notify a victim who has requested notification and has provided a
20 current mailing address or email address, the final decision of the
21 Board may be voidable, provided, the victim who failed to receive
22 notification requests a reconsideration hearing within thirty (30)
23 days of the recommendation by the Board for parole. The Pardon and
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1 Parole Board may reconsider previous action and may rescind a
2 recommendation if deemed appropriate as determined by the Board.

3 O. For purposes of this section, "victim" shall mean ~~all~~
4 ~~persons~~ any person who ~~have~~ has suffered direct or threatened
5 physical or emotional harm, or financial loss as the result of the
6 commission or attempted commission of criminally injurious conduct,
7 and "representatives of the victim" shall mean those persons who are
8 members of the immediate family of the victim, including
9 stepparents, stepbrothers, stepsisters, and stepchildren.

10 P. All meetings of the Pardon and Parole Board shall comply
11 with Section 301 et seq. of Title 25 of the Oklahoma Statutes, ~~and~~
12 provided that the Board shall have the authority to limit the number
13 of persons attending in support of, or in opposition to, any inmate
14 being considered for parole and shall have the authority to exclude
15 persons from attendance in accordance with prison security
16 regulations and the capacity of the meeting room. Persons excluded
17 from attending the meeting under this provision shall be informed of
18 their right to be informed of the vote of the Board in accordance
19 with Section 312 of Title 25 of the Oklahoma Statutes. Provided
20 further, nothing in this section shall be construed to prevent any
21 member of the press or any public official from attending any
22 meeting of the Pardon and Parole Board, except as provided by the
23 Oklahoma Open Meeting Act.

1 Q. All victim information maintained by the Department of
2 Corrections and the Pardon and Parole Board shall be confidential
3 and shall not be released.

4 R. When a commutation is granted or denied, the Secretary of
5 State shall give notice of that fact to the district attorney and
6 clerk of the court in the county where the sentence was originally
7 obtained within thirty (30) business days. ~~Said~~ Such notice may be
8 given by either first-class mail or email. Upon receipt of ~~said~~
9 such notice, the clerk of the court shall file the notice. The
10 district attorney shall confirm that the clerk of the court has
11 filed ~~said~~ the notice. The notice shall include the following
12 information:

13 1. The month and year in which the commutation was recommended
14 by the Pardon and Parole Board;

15 2. The decision of the Governor to grant or deny commutation;
16 and

17 3. If commutation is granted, the new term of sentence,
18 including conditions thereof, if any, for each charged count.

19 S. The district attorney in the district where the sentence was
20 originally obtained shall ensure that all victims or representatives
21 of the victim are given notice of the decision regarding
22 commutation.

23 SECTION 2. This act shall become effective November 1, 2026.
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1 Passed the Senate the 10th day of March, 2026.

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3 _____
4 Presiding Officer of the Senate

5 Passed the House of Representatives the ____ day of _____,
6 2026.

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8 _____
9 Presiding Officer of the House
10 of Representatives